

		The “Verdict” states: “Judgment is entered in favor of Sweet Carolina Films, LLC and against Inspired Family Entertainment, Inc. in the amount of \$108,340.14.” (Attachment 8(c).) It additionally states, “On this record, there is no substantive evidence that Aldo Guaglione [sic] aka Johnny Remo acted ultra vires with respect to any actions on behalf of Inspired Family Entertainment, Inc.” (Ibid.) Based on the foregoing, judgment shall be entered only against Defendant, Inspired Family Entertainment, Inc., in conformity with the arbitration award. Petitioner to give notice.
109	Neri Bahena vs. Gregory's Pallet Inc 22-01281126	1. Motion for Terminating Sanctions 2. Case Management Conference Plaintiff Pedro Neri Bahena (“Plaintiff”) moves for an order terminating and striking all defenses available to defendant Certified Enterprises, Inc. (“CEI”) and/or evidentiary sanctions, issue sanctions and/or monetary sanctions against CEI and its attorneys Perlman Brown & Wax LLP, in the amount of \$5,568.00. CCP section 2023.030 outlines the various sanctions that may be imposed “against anyone engaging in conduct that is a misuse of the discovery process,” including: monetary sanctions, issue sanctions, evidence sanctions, a terminating sanction, and a contempt sanction. These sanctions may be imposed by the court, “after notice to any affected party, person, or attorney, and after opportunity for hearing.” (Code Civ. Proc., § 2023.030.) Among other acts, disobeying “a court order to provide discovery” and “failing to respond or to submit to an authorized method of discovery” are misuses of the discovery process and conduct that is subject to sanctions. (Code Civ. Proc. § 2023.010, subd. (d), (g).) “Once a party or witness has been ordered to attend a deposition, or to answer discovery, or to produce documents, more severe

sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].)

Many courts have found that terminating sanctions should be imposed only if the court has found a wilful failure to comply. (See Valencia v. Mendoza (2024) 103 Cal.App.5th 427, 447; R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) The trial court has “broad discretion in selecting the appropriate penalty,” and its determination should be upheld “absent an abuse of discretion.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) Nevertheless, terminating sanctions “are to be used sparingly, only when the trial court concludes that lesser sanctions would not bring about the compliance of the offending party.” (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486, 496.) The burden of showing sanctions is not justified (i.e., that the responding party did not willfully fail to perform) lies with the responding party. (See Corns v. Miller (1986) 181 Cal.App.3d 195, 201.)

In this case, on March 19, 2026, Judge De La Cruz ordered CEI to serve verified, code compliant responses, without objection, to Plaintiff’s Requests for Production no later than fourteen (14) days after receiving notice of the Order. (ROA 172.) No sanctions were imposed at that time. (Id.) Plaintiff served notice of the order that same day by email. (ROA 171.) Plaintiff filed this motion for terminating sanctions on April 3, 2026.

Meanwhile, CEI’s demurrer to the entire Complaint had been pending since January 12, 2026. (ROA 143.) The Court heard the demurrer on April 14, 2026, and sustained it without leave to amend. (ROA 180.) The ruling effectively terminated CEI’s involvement in the case, although no judgment of dismissal was ever entered.

	On April 22, 2026, Plaintiff filed a motion for reconsideration of the Court’s order sustaining the demurrer. (ROA 188.) Although this Court denied the motion for reconsideration, it modified its prior order based on its inherent power to reconsider its ruling. (ROA 215.) Accordingly, on August 18, 2026, the Court modified its April 14, 2026, order to allow Plaintiff 20 days leave to amend. Plaintiff timely filed a First Amended Complaint. CEI takes the position that it was never a proper party to this case, as evidenced by the Court sustaining its demurrer without leave to amend. Plaintiff, by contrast, contends that CEI knowingly and willfully violated the March 19, 2026, court order, gambling that its demurrer would ultimately be sustained. The time between when the discovery responses were due and the demurrer was initially ruled upon was less than three weeks. Although the Court finds it excusable that CEI did not produce discovery responses after the demurrer was sustained without leave to amend, CEI’s failure to timely produce the responses as ordered on March 19, 2026, in the first instance is an abuse of the discovery process. The demurrer was already pending when Judge De La Cruz heard the discovery motion. CEI could have sought a stay or sought a longer timeframe to provide the responses. Instead, CEI unilaterally decided to excuse itself from compliance with a Court order. The Court finds that monetary sanctions against CEI and its counsel, Pearlman, Brown & Wax, L.L.P., are appropriate at this juncture. However, the amount requested by Plaintiff is excessive. Sanctions in the amount of \$1,000 (4 hrs at \$250/hr) are due and payable to Plaintiff’s counsel within 30 days of this order. CEI is also ordered to produce responses as set forth in Judge De La Cruz’s March 19, 2026, Order, within 15 days.
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		Plaintiff to give notice.
110	Sound-Crete Contractors, Inc. vs. Panku, Inc. 21-01238373	1. Motions for Attorney Fees are CONTINUED to 09/22/2026 at 10:00 AM 2. Motion to Tax Costs is CONTINUED to 09/22/2026 at 10:00 AM
111	Bonakdar vs. Bonakdar 25-01527577	1. Motion for Order Authorizing Alternative Service 2. Case Management Conference Plaintiff Zahra Bonakdar (“Plaintiff”), proceeding proper, moves for an order authorizing Plaintiff (1) to serve Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel and (2) to serve Defendant Mohammad Bonakdar through WhatsApp, text message, email, and any additional method the Court finds reasonably calculated to provide actual notice. Defendant Zinab Bonakdar aka Sofia Bonakdar (“Defendant”) opposes the motion as to Defendant Mohammad Bonakdar. Defendant Zinab Bonakdar aka Sofia Bonakdar did not address Plaintiff’s arguments regarding service on Defendant Zahra Abbasi Khalili through her guardian ad litem and court-appointed counsel. First, the Court notes that Plaintiff did not file a proof of service for the moving papers. This is improper. Still, the Court will reach the merits of the motion since Defendant opposed the motion and did not raise the issue of improper service of the moving papers. This is not the first time that Plaintiff has failed to file proof of service with her filings. Moving forward, Plaintiff MUST file proof of service, and failure to do so will result in sanctions, as this is now the second time the